

1153.) “Thus, a single overlapping issue is sufficient to require imposition of a stay.” (*Id.* at p. 1153.)

Here, these actions are premised on the same alleged abuse and neglect and involve numerous core overlapping issues regarding the care and treatment provided to Tep by Defendants and whether that care and treatment contributed to Tep’s death. Lorn argues that a stay is unwarranted because the cases involve different plaintiffs. However, that is not relevant to the question of whether the Tep Action which has been ordered to arbitration involves an issue in the instant action.

Lorn further argues that a stay should not be imposed because one action seeks punitive and medical special damages while the other action seeks damages to Tep’s heirs. Lorn further points to the fact that the actions will involve different witnesses, as her testimony will not be required to support the elder abuse claim in the Tep Action. These arguments fail. A single overlapping issue is sufficient to warrant a mandatory stay under section 1281.4. Therefore, the fact that the claims for damages will involve different issues or the actions may warrant different witnesses does not preclude the imposition of a stay where there are other numerous other overlapping issues.

In light of the above, the Motion for Stay is **GRANTED**. This action is **ORDERED** stayed pending resolution of the arbitration in the Tep Action.

A Status Conference re: Status of Arbitration is set for **February 18, 2027 at 10:30 am in Department C34.**

Moving party to give notice.

6. 30-2025-01511420 Gonzalez vs. Home & Estates Investment, Inc	1. Motion to Compel Answers to Form Interrogatories 2. Motion to Compel Further Responses to Form Interrogatories 3. Motion to Compel Further Responses to Form Interrogatories Plaintiff Hector Gonzalez (“Plaintiff”) moves to compel defendants Home and Estates Investment, Inc., Rodjach Investment Properties LLC, and Maricela Rodriguez (“Defendants”) to serve verified responses to Form Interrogatories, Set One, without objections and for an order imposing monetary sanctions against Defendants and their counsel for their failure to serve timely responses. There is no dispute that Defendants have not provided substantive, verified responses to the Form Interrogatories. Thus, the Court finds that further responses are warranted. However, Plaintiff’s request that the responses be without objections is not. Defendants’ counsel served objection-only responses to preserve their objections. No verification by a party is required where the responses contain only objections. (Code Civ. Proc., § 2030.250(a).) <i>Thus, counsel has preserved Defendants’ objections.</i> In light of the above, the Motions to Compel are GRANTED. Defendants are ORDERED to serve further substantive responses to the Form Interrogatories, Set One, within 30 days. As to monetary sanctions, it was Defendants’ failure to stay in contact with their counsel that resulted in counsel being unable to serve substantive responses and there is no evidence that counsel’s conduct was dilatory or contributed to the failure. Thus, sanctions against counsel
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		would be unjust. (Code Civ. Proc., § 2030.300(d).) Therefore, the Court awards Plaintiffs monetary sanctions against Defendants only in the amount of \$500.00 per Defendant. Sanctions to be paid within 30 days. Moving party to give notice.
7.	30-2024-01393434	1. Motion for Sanctions Kaufman vs. Martinez Plaintiff LEAH MICHELE KAUFMAN (“Moving party” or “MP”) seeks an order imposing sanctions pursuant to CCP §128.7 against counsel for Cross-Complainants ASHLEY GISEL MARTINEZ and JUAN MIGUEL MARTINEZ GARCIA and MARIA DEL PILAR TAVERA MEDINA specifically, Michael J. Cody, Esq. and Alex C. Macdonald, Esq. both of Macdonald & Cody, LLP; and Zaid Dean Hakkak, Esq. and Nushan Falatoonzadeh, Esq. of First Law Group-- in an amount to be determined by the Court but not less than \$5,783, which represents the amount in anticipated attorneys fees and costs which have been or will be incurred in addressing the Cross-Complaint and the subsequently filed, Motion for Leave to File a Cross-Complaint. <u>CCP§128.7</u> An attorney or unrepresented party who <i>presents</i> a pleading, motion or similar paper to the court makes an implied “certification” as to its legal and factual merit; and is subject to sanctions for violation of this certification. [CCP § 128.7; see <i>Murphy v. Yale Materials Handling Corp.</i> (1997) 54 CA4th 619, 623—statute inapplicable to pre-1995 cases] The purpose of the statute is “to check abuses in the filing of pleadings, petitions, written notices of motions or similar papers.” [<i>Musaelian v. Adams</i> (2009) 45 C4th 512, 514.] Sanctionable conduct under CCP § 128.7 is limited to “presenting” a “pleading, petition, written notice of motion, or other similar paper” to the court. [CCP § 128.7(b)] By “presenting” the papers to the court, an attorney or unrepresented party certifies that it has read the paper, and “to the best of the person's knowledge, information, and belief, formed after an inquiry reasonable under the circumstances”: • <i>Proper purpose</i>: “It is not being <i>presented primarily for an improper purpose</i>, such as to harass or to cause unnecessary delay or needless increase in the cost of litigation” (CCP § 128.7(b)(1) (emphasis added); • <i>Legal merit</i>: “The claims, defenses, and other legal contentions therein are <i>warranted by existing law</i> or by a nonfrivolous argument for the extension, modification, or reversal of existing law or the establishment of new law” (CCP § 128.7(b)(2) (emphasis added); • <i>Evidentiary support</i>: “The allegations and other factual contentions have <i>evidentiary support</i> or, if specifically so identified, are likely to have evidentiary support after a reasonable opportunity for further investigation or discovery” (CCP § 128.7(b)(3) (emphasis added)); and “The <i>denials</i> of factual contentions are <i>warranted on the evidence</i> or, if specifically so identified, are reasonably based on a lack of information or belief” (CCP § 128.7(b)(4) (emphasis added)). Violation of <i>any</i> of these certifications may give rise to sanctions. [<i>Eichenbaum v. Alon</i> (2003) 106 CA4th 967, 976, 131 CR2d 296, 302] In this instance, Moving Party appears to argue that the 4/6/2026 filing of the Cross-Complaint by Cross-Complainants ASHLEY GISEL MARTINEZ, MARIA DEL PILAR TAVERA